

SENATE BILL 2461

By Bailey

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 29; Title 36; Title 63 and Title 68, relative to
assisted reproductive technology.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 63, Chapter 6, Part 2, is amended by
adding the following as a new section:

63-6-239. Requirements to practice in assisted reproductive technology.

(a) The board, in collaboration with the board of osteopathic examination, shall
establish requirements for a person licensed pursuant to this chapter to obtain a
certificate to practice in assisted reproductive technology.

(b) The board shall issue a certificate to a person licensed pursuant to this
chapter who meets the requirements established by the board to practice in assisted
reproductive technology.

(c) As used in this section:

(1) "Assisted reproductive technology" has the same meaning as defined
in 42 U.S.C. § 263a-7; and

(2) "Board" means the board of medical examiners.

SECTION 2. Tennessee Code Annotated, Title 63, Chapter 6, is amended by adding
the following as a new part:

63-6-1401. Part definitions.

As used in this part:

(1) "Assisted reproductive technology" has the same meaning as defined
in 42 U.S.C. § 263a-7;

(2) "Board" means the board of medical examiners; and

(3) "Certified assisted reproductive technologist" means a person certified to practice in assisted reproductive technology pursuant to this part.

63-6-1402. Practice in assisted reproductive technology.

(a) A person is prohibited from practicing in assisted reproductive technology unless the person has obtained an assisted reproductive technology certificate from the board pursuant to § 63-6-239.

(b) A person may practice in assisted reproductive technology if:

(1) The board has approved the person's application to practice medicine or surgery, as described in § 63-6-207; and

(2) The board determines the person has met the requirements established pursuant to § 63-6-239 to receive a certificate to practice in assisted reproductive technology.

(c) Notwithstanding subsection (a), a certified assisted reproductive technologist may delegate tasks in the practice of assisted reproductive technology to a person who is licensed pursuant to chapter 7 or 19 of this title or a person holding a training license or exemption pursuant to the rules promulgated by the board of medical examiners as long as the task is within the person's training and scope of practice.

63-6-1403. Compliance required.

A certified assisted reproductive technologist must be in compliance with this part within sixty (60) days after the rules become effective to utilize assisted reproductive technology.

63-6-1404. Prohibitions on genetic testing.

A certified assisted reproductive technologist is prohibited from genetically testing an embryo unless the genetic test is for chromosomal abnormality or fatal fetal anomaly.

63-6-1405. Affidavit required - Consent forms.

(a) A certified assisted reproductive technologist shall affirm by affidavit to the board that such technologist uses the standard Society for Assisted Reproductive Technology (SART) template consent form.

(b) In addition to the SART consent form, the certified assisted reproductive technologist must include in the consent form to a prospective patient the following:

(1) A statement that the certified assisted reproductive technologist is prohibited from genetically testing an embryo unless the genetic test is for chromosomal abnormality or fatal fetal anomaly; and

(2) Confirmation from the prospective patient that such patient has a clear understanding of and provides informed consent regarding the custodial care of an unused or abandoned embryo.

63-6-1406. Rules.

The board is authorized to promulgate rules to effectuate this part. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. Tennessee Code Annotated, Title 63, Chapter 9, Part 1, is amended by adding the following as a new section:

63-9-114. Requirements to practice in assisted reproductive technology.

(a) The board, in collaboration with the board of medical examiners, shall establish requirements for a person licensed pursuant to this chapter to obtain a certificate to practice in assisted reproductive technology.

(b) The board shall issue a certificate to a person licensed pursuant to this chapter who meets the requirements established by the board to practice in assisted reproductive technology.

(c) As used in this section:

(1) "Assisted reproductive technology" has the same meaning as defined in 42 U.S.C. § 263a-7; and

(2) "Board" means the board of osteopathic examination.

SECTION 4. Tennessee Code Annotated, Title 63, Chapter 9, is amended by adding the following as a new part:

63-9-201. Part definitions.

As used in this part:

(1) "Assisted reproductive technology" has the same meaning as defined in 42 U.S.C. § 263a-7;

(2) "Board" means the board of osteopathic examination; and

(3) "Certified assisted reproductive technologist" means a person certified to practice assisted reproductive technology pursuant to this part.

63-9-202. Practice in assisted reproductive technology.

(a) A person is prohibited from practicing in assisted reproductive technology unless the person has obtained an assisted reproductive technology certificate from the board pursuant to § 63-9-114.

(b) A person may practice in assisted reproductive technology if:

(1) The board has approved the person's application to practice osteopathic medicine, as described in § 63-9-104; and

(2) The board determines the person has met the requirements established pursuant to § 63-9-114 to receive a certificate to practice in assisted reproductive technology.

(c) Notwithstanding subsection (a), a certified assisted reproductive technologist may delegate tasks in the practice of assisted reproductive technology to a person who

is licensed pursuant to chapter 7 or 19 of this title or a person holding a training license or exemption pursuant to the rules promulgated by the board of osteopathic examination as long as the task is within the person's training and scope of practice.

63-9-203. Compliance.

A certified assisted reproductive technologist must be in compliance with this part within sixty (60) days after the rules become effective to use assisted reproductive technology.

63-9-204. Prohibitions on genetic testing.

A certified assisted reproductive technologist is prohibited from genetically testing an embryo unless the genetic test is for chromosomal abnormality or fatal fetal anomaly.

63-9-205. Affidavit - Consent forms.

(a) A certified assisted reproductive technologist shall affirm by affidavit to the board that the person uses the standard Society for Assisted Reproductive Technology (SART) template consent form.

(b) In addition to the SART consent form, the certified assisted reproductive technologist must include in the consent form to a prospective patient the following:

(1) A statement that the certified assisted reproductive technologist is prohibited from genetically testing an embryo unless the genetic test is for chromosomal abnormality or fatal fetal anomaly; and

(2) Confirmation from the prospective patient that such patient has a clear understanding of and provides informed consent regarding the custodial care of an unused or abandoned embryo.

63-9-206. Rules.

The board is authorized to promulgate rules to effectuate this part. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 5. Tennessee Code Annotated, Title 68, Chapter 1, is amended by adding the following as a new part:

68-1-2101. Part definitions.

As used in this part:

(1) "Assisted reproductive technology" has the same meaning as defined in 42 U.S.C. § 263a-7;

(2) "Department" means the department of health; and

(3) "Fertility clinic" means:

(A) A location that is considered an embryo laboratory, as defined in 42 U.S.C. § 263a-7;

(B) A location where a person is practicing assisted reproductive technology; or

(C) A location where a person is engaging in the storage of embryos.

68-1-2102. Certification required - Compliance.

(a) Each fertility clinic operating in this state shall obtain a certificate to utilize assisted reproductive technology.

(b) A fertility clinic must renew the clinic's certification at intervals determined by the department.

(c) A fertility clinic must be in compliance with this part within sixty (60) days after the rules become effective to utilize assisted reproductive technology.

68-1-2103. Certification for fertility clinics - Inspections - Authority.

(a) The department shall:

(1) Create a certification for fertility clinics in this state to utilize assisted reproductive technology;

(2) Create requirements for the utilization of assisted reproductive technology for fertility clinics; and

(3) Conduct an annual inspection of each fertility clinic.

(b) For purposes of an inspection pursuant to subdivision (a)(3), each fertility clinic shall provide the department access to any facilities, equipment, materials, records, and information that the department determines has a bearing on whether the fertility clinic is operating in accordance with this part.

(c) The department has the authority to:

(1) Deny a fertility clinic's application for a certification to utilize assisted reproductive technology;

(2) Suspend, limit, or restrict a previously certified fertility clinic for a time and in a manner as determined by the department;

(3) Permanently revoke a fertility clinic's certification; or

(4) Refuse to renew a fertility clinic's certification.

(d) The department is authorized to adopt rules to effectuate this part, including creating and establishing application requirements, fees, and standards for such certification and grounds for denying, suspending, revoking, or refusing to renew a certification. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

68-1-2104. Bond requirement.

(a) A fertility clinic shall post a bond in an amount as determined by the commissioner of health for the storage of embryos.

(b) Each certification renewal application must be accompanied by proof of such bond.

68-1-2105. Reporting requirement.

(a) On or before January 31 of each year, the medical director of each fertility clinic located in this state shall:

(1) Submit a report to the federal centers for disease control and prevention (CDC) detailing the pregnancy success rates achieved by the fertility clinic through the utilization of assisted reproductive technology from the prior calendar year; and

(2) Report to the department the pregnancy success rates achieved by the fertility clinic through the utilization of assisted reproductive technology from the prior calendar year and an affirmation that the fertility clinic submitted the report as described in subdivision (a)(1) to the CDC.

(b) If a medical director fails to submit the report to the department pursuant to subsection (a), then the fertility clinic may be subject to disciplinary action by the department, which may include the suspension of the clinic's certification to utilize assisted reproductive technology.

68-1-2106. Rules.

The department is authorized to promulgate rules to effectuate this part. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 6. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 7. For the purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.